

GORSUCH, J., dissenting

Court's examples—taxation, alcohol, and marijuana—involve areas that the federal and state governments each may regulate separately under the Constitution as interpreted by this Court. That is miles away from the separate sovereigns exception, which allows the federal and state governments to accomplish together what *neither* may do separately consistent with the Constitution's commands. As Justice Black understood, the Court's view today "misuse[s] and desecrat[es] . . . the concept" of federalism.²⁸ For "it is just as much an affront to . . . human freedom for a man to be punished twice for the same offense" by two parts of the people's government "as it would be for one . . . to throw him in prison twice for the offense."²⁹

III

A

If the Constitution's text and structure do not supply persuasive support for the government's position, what about a more thorough exploration of the common law from which the Fifth Amendment was drawn?

By 1791 when the Fifth Amendment was adopted, an array of common law authorities suggested that a prosecution in *any* court, so long as the court had jurisdiction over the offense, was enough to bar future reprosecution in another court. Blackstone, for example, reported that an acquittal "before any court having competent jurisdiction of the offence" could be pleaded "in bar of any subsequent accusation for the same crime."³⁰ For support, Blackstone pointed to *Beak v. Thyrrwhit*,³¹ a 1688 case in which the reporter described an acquittal in a foreign country followed by an attempted second prosecution in England that the

²⁸ *Barthkus*, 359 U. S., at 155 (dissenting opinion).

²⁹ *Abbate v. United States*, 359 U. S. 187, 203 (1959) (same).

³⁰ 4 Blackstone, Commentaries 335, and n. j.

³¹ 3 Mod. 194, 87 Eng. Rep. 124 (K. B.).